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CASE #	CASE NAME	HEARING NAME
CVRI2304207	GREEN MAGNOLIA LLC vs SUNLIGHTEN, INC	Application of Thomas Wagstaff, Jr. for Admission Pro Hac Vice

Tentative Ruling:

California Business and Professions Code §6125 provides that only active members of the California State Bar shall practice law in this state. California Rule of Court 9.40 allows state courts to give permission for out-of-state attorneys who are not licensed in California to appear on behalf of a party in a particular case as counsel *pro hac vice*. The court can only permit appearances that are made in association with an active California State Bar member who acts as the attorney of record for the party.

CRC 9.40 requires that an application to appear *pro hac vice* be made in writing and be verified. The application must state the applicant attorney's office and residence addresses; the courts to which the attorney has been admitted to practice and the dates of admission; that the attorney is a member in good standing in those courts; that the attorney is not currently suspended or disbarred in any court; the title of the court and cause in which the attorney has filed an application to appear *pro hac vice* in California within the preceding two years, the date of each application, and whether or not it was granted; and the name, address, and telephone number of the active member of the State Bar of California who is attorney of record. No person is eligible to appear as counsel *pro hac vice* if they are a resident of California; are regularly employed in California; or are regularly engaged in substantial business, professional, or other activities in California.

It appears to the Court that all the above requirements have been met.

The Application to appear *pro hac vice* must be served on the San Francisco office of the State Bar of California, which must also be paid a fee not exceeding \$50.00 to defray administration expenses. Absent special circumstances, repeated appearances by any attorney under the Rule is a cause for denial of an application (*Walter E. Heller Western, Inc. vs. Superior Court (County of Los Angeles)* (1980) 111 Cal. App. 3d 706, 710). While appearing *pro hac vice*, an out-of-state attorney submits to the jurisdiction of state courts regarding state laws governing attorney conduct to the same extent as a California State Bar member. A trial court's inherent powers include the authority to revoke an attorney's *pro hac vice* status when that attorney has engaged in conduct that would be sufficient to disqualify a California attorney (*Sheller vs. Superior Court of Los Angeles County* (2008) 158 Cal. App. 4th 1697, 1716).

It does not appear that the required fee has been submitted to the State Bar of California, nor has the application been served on the State Bar.

For this reason, the application is denied without prejudice.